

Ex. Eng. E.D.D. Dakshinanchal V.V. Nigam Ltd. v. Jagdish Verma

High Court of Judicature at Allahabad · Single Judge · 25 September 2014 · Writ-C No. 52249 of 2014 · Writ-C No. 52249 of 2014 · **Licensee's writ dismissed; PLA restoration of connection stands.**

HEADNOTE

The licensee's writ against a Permanent Lok Adalat award directing restoration of supply was dismissed. Permanent disconnection had been effected the same day as an application in the name of a consumer who died in 1985, without verifying the request or calling for a dues report. Clause 4.38 of the Electricity Supply Code, 2005 permits permanent disconnection on the consumer's request and prescribes dues, security-adjustment and surcharge procedure. Counsel for the licensee accepted that the Code procedure had not been followed. No interference was called for.

FACTUAL SUMMARY

Dakshinanchal Vidyut Vitran Nigam Ltd. challenged an award of the Permanent Lok Adalat, Jhansi dated 16 July 2014 directing it to restore electricity connection no. 4102/039033, failing which it was to pay Rs 500 per week as compensation. Respondent Jagdish Verma had approached the Lok Adalat after the connection was permanently disconnected on 5 April 2014 on an application in the name of Lal Chandra Verma, who had died in 1985. Disconnection was effected the same day, without verifying the applicant or calling for a report of outstanding dues.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.38

permanent disconnection on consumer request

HOLDING

Permanent disconnection under Clause 4.38 of the Electricity Supply Code, 2005 may be made on the request of the consumer. An application in the name of a person who had died in 1985, acted on the same day without verifying genuineness or calling for a report of outstanding dues, is not in accordance with that procedure. The Permanent Lok Adalat's award directing restoration of the connection therefore called for no interference, and the licensee's writ was dismissed. ¶ 2-3

FLAG Counsel referred to the provision as Section 38 of the Code; the Court cited Clause 4.38.

PRINCIPLE TAGS

clause-4.37-4.38-licensee-empowered-to-permanently-disconnect

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